

IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF COLORADO

Civil Action No. 00-cv-1077-JLK-KLM

UNITED STATES OF AMERICA, ex rel, ALI BAHRANI,

Plaintiffs,

v.

CONAGRA, INC.; CONAGRA HIDE DIVISION; CONAGRA BEEF  
COMPANIES, and MONFORT, INC.,

Defendants.

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JUDGMENT

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The first phase of the bifurcated trial in this reverse-false claim *qui tam* action commenced on April 28, 2008 and resulted in a jury verdict finding Relator Ali Bahrani was not the original source of his meat export certificate claims. The final phase of the bifurcated trial in this reverse-false claim *qui tam* action under the False Claims Act was tried to a jury of 12 commencing Monday, March 9, 2009. After less than a day of deliberations, the jury returned a verdict on March 18, 2009.

Pursuant to and in accordance with the Amended Order for Judgment entered by Senior Judge John L. Kane on March 19, 2009, incorporated herein by reference, it is

ORDERED:

1. Judgment is entered in favor of Relator and against Defendants on five of Relator's 1000+ reverse false claims under 31 U.S.C. § 3729(a)(7) for a total amount of damages and civil penalties of \$27,822.50.
2. Judgment is entered in favor of Defendants and against Relator on his remaining

995+ reverse false claims under the FCA, as well as on all of Relator's meat-based reverse false claims.

3. Relator shall be entitled to statutory post-judgment interest on the damages and penalty award at the applicable federal rate of .70% from the date of entry of this judgment.

4. The parties shall bear their own costs.

DATED at Denver, Colorado this 20th day of March, 2009.

FOR THE COURT:

GREGORY C. LANGHAM, CLERK

s/ Edward P. Butler  
Edward P. Butler,  
Deputy Clerk